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Tentative Ruling

Re: ***Okwelogu v. BSR Trucking Inc., et al***
Superior Court Case No. 26CU01127

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders. In the event that oral argument is requested minor is excused from appearing.

Explanation:

The petition to compromise minor's claim arises from a motor vehicle accident that occurred on December 23, 2021. According to the petition at item 6., the minor received no injuries and, according to the petition at item 12., the minor paid no medical expenses. However, the Mark Nagle Declaration at paragraph two indicates that the minor suffered minor injuries and was evaluated at the emergency room. No records were provided of the costs or the evaluation that occurred at that visit to the emergency room. Depending on the extent of injuries, additional records of recovery may also be required.

Additionally, Attachment 18b(2) of the petition, which identifies the bank the money will be deposited in, is missing from the petition.

Finally, to the extent documents identify petitioner as guardian ad litem, no order granting guardian ad litem status is on the court's docket.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 24, 2026 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Mayra Aguirre vs. General Motors, LLC**
Superior Court Case No. 25CECG03657

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiffs', Mayra Aguirre and Jermaine Aguirre Motion for Payment of Attorney Fees and Reimbursement of Costs and Expenses

Tentative Ruling:

To grant the motion for attorney fees in the amount of \$18,690.80. Payment shall be made by defendant General Motors, LLC to Premier Legal Center, APC. within 30 days of the clerk's service of this minute order.

Explanation:

Plaintiffs', Mayra Aguirre and Jermaine Aguirre ("plaintiffs") counsel Premier Legal Center, APC. ("Counsel" or "Premier Legal") seeks \$57,514.55 in fees and costs including (1) \$36,150 in lodestar fees; (2) a 1.5 multiplier enhancement in the amount of \$18,075; and (3) an additional \$3,289.55 in incurred costs and expenses, against General Motors, LLC ("defendant" or "GM.")

Right to Recovery

An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer "to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Attorney Fees Incurred

A buyer prevailing under the Song-Beverly Act may recover "reasonable" attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) "The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (*Gonzalez v. Santa Clara County Dept. of Social Services* (2017) 9 Cal.App.5th 162, 169.) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096.)

Here, plaintiffs' counsel seeks to recover \$36,150 in lodestar fees for 63.1 hours of work, billed at the following rates:

	Title	Rate Per Hour	Total Hours	Total Amount Billed
Steve Marchbanks	Attorney	\$700	36.5	\$25,550
Jermina Landstrom	Attorney	\$500	13.1	\$6,550
Jordan Nelson	Paralegal	\$300	13.5	\$4,050
TOTAL		-	63.1	\$36,150

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, "*Ketchum*".) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

The rates for plaintiff's counsel are higher than Central California's going rates for comparable consumer litigators. Plaintiff's counsel rates are: \$700 for Steve Marchbanks (23 year lawyer specializing in the Song-Beverly Consumer Warranty Act); and \$500 per hour for Jermina Landstrom (11+ year lawyer specializing in Song-Beverly Consumer Warranty Act). (Marchbanks Decl., ¶¶ 12-16.)

Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) Plaintiffs have made no showing of any attempt to seek local counsel. There are local counsel who handle similar cases. Local rates are therefore appropriate.

Here, based on relevant experience, and consistent with prevailing rates for attorneys of comparable experience handling routine Song-Beverly matters in Fresno County, the Court finds that the applicable rate for Marchbanks is \$650 per hour; and \$450 per hour for Landstrom. Furthermore, the Court finds that the applicable paralegal rate in Fresno to be \$200/hr, for a paralegal with Nelson's experiences.

Hours Expended

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) The court will exercise its discretion in determining if the Plaintiff's attorney fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

Plaintiff's counsel recorded 63.1 hours of attorney time as well as time spent by paralegals. This figure also includes 11 anticipated hours, that are addressed below.

GM points to many activities as being overbilled, noting that plaintiff's counsel relied on templates and forms in preparing the complaints and discovery responses, as well as duplicative review of motions. (GM Opposition, pgs. 5:13-8:14.) The court reviewed the entries to which GM objects and finds numerous fees to be above the accepted norm. For instance, the Court reduced Marchbanks time in drafting a templated complaint. The Court also found some of Marchbanks efforts in scheduling, and corresponding during mediation, excessive, where some of the tasks recorded by Marchbanks were purely for scheduling, and the time reviewing a straightforward settlement agreement was above the norm. Furthermore, there were several instances of duplicative review by both Marchbanks and Landstrom, and the Court apportioned time between the two attorneys. Furthermore, the time spent by Landstrom in preparing for a straightforward mediation, which she did not attend, was also excessive. Accordingly, the Court reduced attorney time to 21.35 hours.

Time entries for Nelson were separately analyzed below with respect to "Clerical/Administrative Tasks."

Clerical/Administrative Tasks

Paralegal fees may be awarded as attorney fees if the trial court deems it appropriate. (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.) However, purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a greatly reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187; Ridgeway v. Wal-Mart Stores Inc. (N.D. Cal. 2017) 269 F.Supp.3d 975, 991.)

Plaintiffs' counsel initially submitted 13.5 hours of paralegal time. The court reduces the applicable billing time for the paralegals to be 0.25 hours, reducing recoverable time by the paralegals by 13.25 hours. The Court notes that much of the paralegal's recorded time was either clerical or administrative, such as the coordination of pleadings, scheduling mediation, and correspondence between the parties. Furthermore, the Court notes numerous duplicative efforts where the paralegal and attorneys reviewed the same responses and correspondences.

Anticipated Hours

Additional Time Opposing this Motion

Plaintiffs' counsel expected to spend 11 hours, in connection with (1) reviewing Defendant's Opposition to Plaintiff's Motion; (2) preparing the Reply brief to Defendant's Opposition; and (3) attending the hearing on Plaintiff's Motion, between attorneys Marchbanks and Landstrom. (Marchbanks Decl., ¶ 4, Ex. F.)

The Court finds the anticipated time of 11 hours to be excessive for the purposes of reviewing and drafting a reply. Accordingly, the Court reduces the anticipated time by 7 hours in connection to fees to reply to GM's opposition, and that 4 hours under these circumstances is reasonable to review and file an reply.

Reasonableness of Multiplier

Relevant factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ketchum, supra*, 24 Cal.4th at 1132.)

Plaintiff's counsel requests that a multiplier of 0.5 be applied to the combined lodestar. (Plaintiffs' Moving Papers, pps. 7:8-8:2.) Plaintiff argues that the factors that should be looked at in this case are the outcome received by the plaintiff's counsel, risks posed by the litigation, and the opportunity costs of losing other potential clients.

In opposition, defendant argues that there is no basis to award a multiplier as there was minimal litigation with the case settling after 6 months, that plaintiff's counsel failed to provide any basis that they couldn't take on new clients, and the contingent risks in this case were minimal. (GM's Opposition, pps. 8:14-10:7.)

The Court finds that the results of this case are not exceptional and awarding a multiplier is not warranted because the time and skill of counsel, as well as the contingent nature of the representation, are compensated with high fees. Plaintiff's counsel also failed to show how this case is different from other lemon law actions or presented new or complex issues that made this case particularly hard to litigate. Furthermore, this case was filed, negotiated, and settled in six months, well before the formal litigation process even began.

Costs

Plaintiffs include a request for an award of costs in the amount of \$3,289.55. Civil Code section 1794, subdivision (d) provides that a plaintiff may recover "the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." As *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42 explained, "[T]he Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs' ' set forth in Code of Civil Procedure section 1033.5." (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.)

Defendant opposes these expenses on the grounds that plaintiff cannot them because he did not file a verified memorandum of costs. (GM's Opposition, pg. 12:3-4.) Defendant cites no authority holding that rule applies to expenses under Civil Code section 1794, subdivision (d).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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